

KAVANAUGH, J., concurring in part

*Second*, *Apodaca* causes significant negative consequences. It is true that *Apodaca* is workable. But *Apodaca* sanctions the conviction at trial or by guilty plea of some defendants who might not be convicted under the proper constitutional rule (although exactly how many is of course unknowable). That consequence has traditionally supplied some support for overruling an egregiously wrong criminal-procedure precedent. See generally *Malloy*, 378 U. S. 1.

In addition, and significant to my analysis of this case, the origins and effects of the non-unanimous jury rule strongly support overruling *Apodaca*. Louisiana achieved statehood in 1812. And throughout most of the 1800s, the State required unanimous juries in criminal cases. But at its 1898 state constitutional convention, Louisiana enshrined non-unanimous juries into the state constitution. Why the change? The State wanted to diminish the influence of black jurors, who had won the right to serve on juries through the Fourteenth Amendment in 1868 and the Civil Rights Act of 1875. See *Strauder v. West Virginia*, 100 U. S. 303, 308–310 (1880); T. Aiello, *Jim Crow’s Last Stand: Non-unanimous Criminal Jury Verdicts in Louisiana* 16, 19 (2015). Coming on the heels of the State’s 1896 victory in *Plessy v. Ferguson*, 163 U. S. 537, the 1898 constitutional convention expressly sought to “establish the supremacy of the white race.” Semmes, Chairman of the Committee on the Judiciary, Address at the Louisiana Constitutional Convention in 1898, in *Official Journal of the Proceedings of the Constitutional Convention of the State of Louisiana* 375 (H. Hearsey ed. 1898). And the convention approved non-unanimous juries as one pillar of a comprehensive and brutal program of

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the *result* of the decision still constitutes a binding precedent for the federal and state courts, and for this Court, unless and until it is overruled by this Court. As I read the Court’s various opinions today, six Justices treat the result in *Apodaca* as a precedent for purposes of *stare decisis* analysis. A different group of six Justices concludes that *Apodaca* should be and is overruled.